24BBCV00291 24BBCV00291

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-31

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Case Number: 24BBCV00291 Hearing Date: July 31, 2026 Dept: A

TENTATIVE RULING

JULY 31, 2026

MOTION TO TAX COSTS

Los
Angeles Superior Court Case # 24BBCV00291

MP: Defendant American Honda Motor Company, Inc.

RP: Plaintiff
Ernesto Estrada

NOTICE:

The Court is not
requesting oral argument on this matter. The Court is guided by
California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear
is requested. Unless the Court directs argument in the Tentative Ruling,
no argument is required and any party seeking argument should notify all other
parties and the court by 4:00 p.m. on the court day before the hearing of the
party's intention to appear and argue. The tentative ruling will become
the ruling of the court if no argument is received.

Notice may be given
either by email at or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT BACKGROUND:

Ernesto Estrada
("Plaintiff") alleges that on August 23, 2019, he purchased a 2019 Honda HR-V,
which was warranted by American Honda Motor Company ("Defendant"). Plaintiff alleges that the vehicle was delivered with serious defects and nonconformities to the warranty. He alleges he presented the vehicle on multiple occasions for repair, but Defendant was unable to conform the vehicle
to applicable warranties after a reasonable number of attempts.

The Complaint,
filed February 5, 2024, alleges: (1) Violation of Civil Code, § 1793.2(d); (2) Violation of Civil Code, § 1793.2(b); (3) Violation of Civil Code, § 1793.2(a)(3); (4) Breach of Express Written Warranty (Civil Code, §§ 1791.2(a), 1794); and (5) Breach of Implied Warranty of Merchantability (Civil Code, §§ 1791.1, 1794).

On November 19,
2025, Plaintiff filed a Notice of Conditional Settlement of Entire Case. On January 20, 2026, the Court held an Order to Show Cause re: Dismissal (Settlement) and dismissed the matter without prejudice subject to retained jurisdiction pursuant to C.C.P. § 664.6(f).

MOTION ON CALENDAR:

In his
memorandum of costs (filed March 13, 2026), Plaintiff seeks:

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Item 1. Filing and
Motion Fees - $516.99

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Item 2. Jury Fees - $150

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Item 5. Service of
Process - $30.90

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Item 10. Attorney's
Fees – TBD by Motion

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Item 15. Other - $606.20

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TOTAL: $1,304.09

On April 2, 2026, Defendant filed a Motion to Tax Costs. On July 23, 2026, Plaintiff filed an untimely opposition. (The opposition was due by July 20, 2026. In Plaintiff's counsel Michael Figura's declaration, he states that he inadvertently missed the deadline and upon realizing the mistake, served and filed the opposition. [Figura Decl., ¶¶5-9.]) On July 27, 2026, Defendant filed a reply.

LEGAL STANDARD:

Civil Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

Any motion to strike or tax costs must be served and filed 15 days after service of the memorandum, plus an additional 5 days if served by mail or 2 days if served electronically. (CRC Rule 3.1700(b)(1).) "Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (CRC, Rule 3.1700(b)(2).)

ANALYSIS:

In the Memorandum of Costs, Attachment 15A identifies $600 in Mediation Fees and $6.20 for “Download of Trial Preparation Order.”

“Items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion.” (C.C.P. § 1033.5(c)(4).) “Mediation costs are not listed among the costs that are expressly allowable or expressly not allowable.” (Berkeley Cement, Inc. v. Regents of University of California (2019) 30 Cal.App.5th 1133, 1140.) “Consequently, mediation costs fall within the category of costs that may be awarded in the trial court's discretion.” (Id.) Fees incurred for mediation that is not court-ordered are not categorically necessary to the conduct of the litigation. (Berkeley Cement, Inc. v. Regents of University of California (2019) 30 Cal.App.5th 1133, 1141, 1143.) “The question whether mediation fees should be awarded as costs in a particular matter must be determined based on the facts and circumstances of the particular action.” (Id. at 1143.) “Encouraging the parties to resolve lawsuits at the earliest time and before a costly and time-consuming trial, is a necessary part of litigation as conducted in this state.” (Gibson v. Bobroff (1996) 49 Cal.App.4th 1202, 1209.)

Defendant moves to strike the $600 mediation fees, arguing Plaintiff has not supported the reasonableness of the costs and the costs are excessive, nondescript, and unnecessary. Defendant claims that mediation was voluntary and not court ordered; mediation occurred in April 2025 before the matter ultimately settled in October 2025; and the mediation was unsuccessful in advancing or resolving the dispute such that it was not reasonably necessary for the litigation. (Mot. at p.6; Reply at p.3.)

In opposition, Plaintiff’s counsel Michael Figura states that the parties agreed to mediate the matter and attaches a copy of the Smart ADR invoice for $600. (Figura Decl., ¶3, Ex. A.) Plaintiff argues that because the parties both agreed to pursue mediation (even if ultimately unsuccessful at the time), this shows that the parties both believed it would be useful to resolving the case. (Opp. at p.3.)

Although mediation costs are not automatically recoverable,
the Court will exercise its discretion and allow the cost. While the mediation with Smart ADR in April 2025 did not result in the settlement of this case, the Court finds that, as stated in case law, mediation encourages the parties to resolve the lawsuit and avoid other litigation costs and could have been a reasonable and necessary step to ultimately reach a settlement.

The motion to tax costs is denied.

RULING:

In the event a party
requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant American Honda Motor Company, Inc.'s Motion to Tax Costs came on regularly for hearing on July 31, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE
MOTION TO TAX PLAINTIFF'S COSTS IS DENIED SUCH THAT PLAINTIFF SHALL BE ENTITLED THE FOLLOWING COSTS AS REQUESTED:

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Item 1. Filing and
Motion Fees - $516.99

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Item 2. Jury Fees -
$150

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Item 5. Service of

Process - $30.90

.

Item 10. Attorney's
Fees – TBD by Motion

.

Item 15. Other - $606.20
(no reduction)

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TOTAL: $1,304.09

DEFENDANT
TO GIVE NOTICE.

IT IS SO ORDERED.